

The right to be hostile

The Right to Be Hostile

Crackdowns on pro-Palestinian protest force a reckoning with inflated definitions of harm and harassment.

By Alex Gourevitch

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Over the last year and a half, American universities have rapidly destroyed the right to protest on campus. At the request of administrators, heavily armed police raided unarmed, nonviolent protesters opposing Israel's war on Gaza. Encampments have been forcibly cleared, while extreme punishment has been used as a tool of intimidation. Some 3,100 students have been detained or arrested, and thousands more face severe university discipline—suspension, expulsion, and loss of degree.

Administrators have offered nothing but specious rationales for their extraordinary repression of pro-Palestinian protest.

More recently, the Trump administration has exacted even more suppression. First it suspended \$400 million of federal funding to Columbia, conditioning its restoration on accession to a range of outrageous demands whose fulfillment, the administration alleges, is necessary to protect Jewish students and comply with Title VI of the 1964 Civil Rights Act. Sixty other universities were subsequently threatened with the same shakedown. Since then, Columbia protester Mahmoud Khalil was disappeared, despite his possession of a green card; he was only the first. In response, several universities have adopted extremely restrictive speech codes and protest

rules, developed new disciplinary procedures and task forces, ousted faculty, decimated whole departments, and imposed draconian punishments. Only when faced with something approaching a hostile government takeover have universities like Harvard started to fight back.

Many factors, in addition to moral cowardice and ideological agreement, help to explain why universities capitulated. Across the country, their budgets have grown increasingly reliant on federal funding, especially to support scientific research. The structures of university governance empower boards and presidents over faculty, students, and staff, while trustees, with deep ties to business and politics, typically have little connection to research and teaching or to the institution at large. Endowments are widely seen as indicators of prestige, not to be spent down to defend institutional integrity but constantly expanded through the cultivation of megadonors. Meanwhile, a vast class of administrators has ballooned over the last half century, rendering donor relations ever more transactional and student life both more consumerist and more surveilled. To top it off, many elite universities have forsaken institutional neutrality for an increasingly vocal social justice liberalism over the last decade, both in the messaging of campus leadership and in administrative meddling in speech and student affairs.

All this has left universities vulnerable to Trump's attacks. Working in tandem with well-organized networks of "anti-antisemitism" advocacy groups, the administration is wielding antidiscrimination laws and "safetyist" rationales the right has spent years attacking to carry out the "counterrevolution blueprint" that Manhattan Institute senior fellow Christopher Rufo laid out in December, calling for purging universities and the federal government of "left-wing ideologies."

How should we fight back against this new McCarthyism? And to what end? As teachers and students learn just how little control they have over campus, it is clear that we need not just a general defense of academic freedom but also a more specific and absolutist defense of the right to

protest. A democratic society generally, and colleges and universities in particular, must protect the right to engage in public, disruptive acts—including those that feature open expressions of hostility to political views—even at the cost of some people feeling discomfort or even intense unease. That was the prevailing attitude toward protest on campus for the past several decades, and it served all students, as well as the mission and vitality of the university, well.

Indeed, after the social movements of the 1960s pushed their way onto campus, universities rightly came to tolerate—even celebrate—protest as an ordinary part of university life, viewing it as a sign of the life and health of a community devoted to collective learning. As former Columbia president Lee Bollinger put it in 2008, "the '60s were significant in establishing freedom of expression," both on campus and off. It was a mistake, he concluded, to bring in the NYPD after students occupied a Columbia administration building in 1968. Even crackdowns at the time were not as severe as they have been in recent months. At the peak of anti-Vietnam protests in 1969, when millions rather than thousands of students were marching and occupying, only around 4,000 students were arrested—a vastly smaller percentage than today.

If history is any guide, rescuing the rights now being rolled back will require a range of tactics, including vigorous protest itself. It will also require building broad and unwavering consensus about the speciousness of the rationales being offered for today's draconian crackdowns. Those have taken three principal forms. First, the Gaza protests were said to be disruptive to the ordinary life of the community. Second, because protests took place on private property—the property of the university—protesters who refused to disperse were said to be trespassing. Third and perhaps most perniciously, university community members stated that they felt the protests were threatening or harmful, which schools appear to have interpreted as sufficient evidence of a "hostile environment" for Jewish and Israeli students that may violate Title VI.

All of these are bad justifications. When they are interpreted and applied as they have been in recent months, there can be no right to protest at all. That is an outcome anyone committed to the mission and health of the university, not to mention democracy in general, must emphatically reject.

On the matter of disruptiveness, it is true that some Gaza protests sometimes interfered with ordinary foot traffic. But unlike, say, a labor picket, last year's gatherings and encampments did not actually try to prevent anyone from getting where they were trying to go. Students could still access their dorms and classes; faculty could still go to their classrooms and offices, and staff could still access their workplaces. In a few controversial cases, ordinary traffic through a commons was blocked, such that people had to maneuver around the encampments. That was genuinely inconvenient, but only that. The available reporting makes clear that in the vast majority of cases, everyone could find their way to where they needed to be. Where protesters erected obstacles, the evidence suggests they usually did so to defend and protect themselves.

Protests can also be noisy—inescapably, since any right to protest must accommodate fervent dissent. The noise can make it harder to study and teach. But this has been a routine feature of thousands of campus protests. Universities have rightly tolerated them in the past, especially when participants make the effort, as they generally did last year, to keep noise levels down in evenings. More basically, if making noise is itself punishable—and severely so—then there is effectively no right to protest. Recognizing such a right entails tolerance for some measure of disruptiveness, with only the most serious disruption serving as a legitimate basis for punishment—and then only modest punishment, which recognizes the conscientious nature of the protest act.

The Gaza protests represent more than the public airing of dissent. They test whether public space on campus can be said to exist at all.

A question, then, is whether protesters crossed the line into serious disruption. Some did occupy administration buildings and in a few cases noisily interrupted classes or libraries. Yet the weight of punishment for these actions—including criminal prosecution, expulsion, and loss of degree—has been massively disproportionate and historically unprecedented. The aim of these punishments is not to reinforce discipline in light of rule-breaking but to persecute individuals *for protesting*. And in particular, for protesting the actions of Israel and universities' connection to Israel.

The second justification for cracking down—trespass—drew less public attention, but hundreds of protesters were arrested, and some were even criminally prosecuted, on this basis. Whether protesters violated university property rights when refusing to disperse depends on what we think the rules governing campus property should be. Historically, those rules have not proscribed encampments. Colleges have tolerated them when protesters agitated against war, racism, and South African apartheid; in support of free speech, women's rights, the Occupy movement, and living wages for university employees; and in hopes of creating new university departments.

Universities have also long permitted the extended use of campus commons for deeply offensive, in-your-face protest. For two days in October last year, for example, the University of South Carolina permitted the pro-life Genocide Awareness Project to post large signs reading "Genocide Photos Ahead" along with graphic images of aborted fetuses next to Nazi flags and images of lynched bodies and people murdered during the Rwandan genocide. "The purpose of [this protest] is to bring the truth of abortion to campuses . . . and to actually get conversation started," the president of the university's College Republicans said. Despite its highly controversial message and messaging, the Genocide Awareness Project has visited college campuses across the country for twenty-six years. Other examples include the posting of large, disturbing images of animal testing, and a highly inflammatory anti-affirmative action "bake sale" at Texas Tech in which a conservative student

group sold cookies that were priced differently based on the race or ethnicity of the student.

To be clear, the question of whether protesters demonstrating against Israel's war in Gaza were trespassing does not turn on matters of legal ownership. No one doubts that, formally speaking, the campus commons are the private property of the university. The university's legal control over space is a foundation of academic freedom. The ability of academics to research and teach freely is predicated on universities' capacity to decide for themselves how campus facilities may be used—subject, of course, to generally applicable laws, including antidiscrimination laws.

But universities are not just places of research and teaching. They are also communities where people live: where they work, play, study, sleep, argue, fall in love, pray, compete, credentialize, and develop themselves. To sustain this kind of community, universities don't just enjoy formal rights of self-government; they normally have public spaces or commons, which are not like other pieces of university property. A yard, field, or plaza is not the same as a library or classroom. First Amendment jurisprudence protects access to such "public fora." Technically, this law applies only to public universities, but there is no good reason that administrators of private colleges should not apply the same standard. A commons is not ungoverned, but it is less governed—precisely so that members of the community may give voluntary expression to their relationship to the community, including congregating for the purpose of protesting the university's rules and actions and its relation to the wider world.

In this sense, the Gaza protests, like all protests, represent more than the public airing of the views of university community members. They simultaneously test whether public space on campus can be said to exist at all. Universities deeply betrayed their nonprofit, educational mission—the key feature that distinguishes them from private corporations—when they asserted a property right to shut these protests down. And no doubt, fork-tongued administrators will resume touting this very mission when the same

politicians insisting on crackdowns set out to tax their endowments or revoke their tax-exempt status.

So much for the first two rationales. What about the third? The most high-profile defense of crackdowns—in some ways, the most insidious—has been that, while protest might generally be tolerated, these particular protests caused harm, threatened violence, or constituted harassment against Jewish or Israeli students.

It is certainly true that a university must protect students from harm and harassment if it is to sustain the social and intellectual life of the community. Nobody can enjoy academic freedom and free speech if they face credible threats of harm for what they say or who they are, nor if they are burdened by a genuinely hostile environment that directly excludes them from participating in campus life. The problem is not mainly with this standard itself but with the way it has been interpreted. The available evidence suggests that administrators made calls solely on the basis of self-reported feelings rather than on findings of credible, imminent threats or systematic denial of access. When some students or faculty said they felt threatened or harassed, that in itself counted as incontrovertible evidence of threat or harassment. When they said they felt harmed, that counted as harm.

According to the American Jewish Council, for example, about half of U.S. Jewish students who saw the demonstrations reported feeling "unsafe on campus." Hillel, meanwhile, found large numbers stating that "stronger responses and consequences" would make them feel safer. Parents and some Jewish or pro-Israel organizations insisted that the protests created an unsafe environment for Jewish and Israeli students. House Minority Leader Hakeem Jeffries echoed these concerns when he invoked the existence of a "hostile academic environment" to explain why universities were warranted in imposing severe disciplinary measures. The idea may not seem on its face implausible. After all, Jews are a minority with their own history of horrific and violent persecution. If our norms and laws are designed to protect historically marginalized groups, Jews' own history would appear to

lend urgency and credibility to students' claims that something must be done to assuage their feelings of vulnerability.

It cannot be that there is a right to protest just so long as protesters avoid saying or doing anything that someone finds uncomfortable.

That is precisely the kind of claim advanced by groups such as the Harvard Jewish Alumni Alliance, which issued a report condemning a "hostile environment" on campus that has been cited by private lawsuits. "Someone I know was studying in [xxx] library," the group quotes one student complaining. "He couldn't focus because he was sitting next to ~15 people in Keffiyehs who wanted to write an op-ed in support of that proctor who had been let go. My friend didn't want to stick around and study for the math exam." Another states, "It's scary to walk through the protest. I usually walk through the back doors [or the] side entrances at [the] science center." Still another says, "I have this flight or fight reaction when waking up in the morning and hearing the protestors chanting. I can't always tell what they're chanting, but I always feel that fear, feel triggered, and I [don't want to] walk through them to find out what they're saying."

These and similar statements provide ample evidence that students felt vulnerable or disturbed by protests. But it is a grave mistake—a threat to everyone's liberty and a betrayal of democracy—to infer on this basis that protests created an objectively hostile environment and therefore warranted being shut down. Reasoning of this kind is far too broad and repressive because it fails to distinguish between subjective feelings and objective circumstances. Notably, feelings of unease would never suffice to meet the legal standard of a "hostile environment." Proving that one has been threatened or harassed requires objective evidence, not just a subjective sense of fear. And the evidence must demonstrate systematic and severe mistreatment, not just isolated inconvenience or discomfort. The statements above do nothing of the sort. Yet in the case of the Gaza protests, litigation-

wary, donor-beholden administrators took them as justification for extraordinary repression.

That is perhaps one reason not just the crackdowns but the ensuing punishments were exceptionally severe. The point, evidently, was to chill speech and send a message: any actions that caused Jewish or Israeli students to feel uncomfortable would not be tolerated. On the rare occasions when there were individualized threats or credible reports of assault, instead of just investigating and punishing the individuals responsible, administrators used the existence of such threats to suppress the whole mass of nonviolent protesters.

While administrators and university leadership are the ones setting policy on campus, the broader politics of this issue have made it difficult to build a strong and effective consensus about how to handle offensive speech, especially when it comes to the aggressive expressions so typical of protest. The justification from subjective feelings is not new, and its invocation in recent months is not surprising. On the contrary, recent crackdowns are the coercive endpoint of a way of thinking about harm and harassment that has been developing on and off campus for a long time, coming from the left as well as the right.

On the progressive side, arguments for speech codes and deplatforming have relied on the claim that feelings of being "triggered," "traumatized," or otherwise disrespected are sufficient evidence that a line has been crossed and administrative intervention is required. Across a wide range of issues, especially related to race and gender, liberal and left-wing students have tried to ban speakers, cancel events, or otherwise suppress speech on grounds that it makes them feel unsafe. Even critics of Israel have taken this tack. When the UC San Diego branch of Turning Point USA displayed a sign saying "Israel aims to protect / Terrorists aim to kill" next to the Israeli and

Palestinian flags in 2022, pro-Palestinian students demanded the statement be taken down because it was harmful, dangerous, and reinforced bias.

For their part, conservatives unquestioningly defend police who say they feel unsafe and therefore need yet more physical protections and legal permission to kill. (Never mind that police are safer today than they have been in fifty years.) As for campus life, the pro-life right evidently believes it is fine to scream about genocide in campus protests showing pictures of dead babies—unless they are Palestinian babies. And they have eagerly embraced inflated fears about antisemitism as a cudgel against universities. After decrying "cancel culture" for a decade, Rufo argued in February, the right should now embrace it.

Encountering passionate opposition to our views is inevitably discomfiting—how could it be otherwise, when our deeply held beliefs are challenged?

In this climate, university and public officials have accepted an increasingly expansive understanding of what counts as a hostile environment. Instead of stating a precise and objective standard that distinguishes action from speech, they have de-emphasized the need to demonstrate objective risks of physical violence or threatening property destruction. Instead, the question authorities are asking is much simpler: whether statements or symbols might cause psychological pain or generate feelings of vulnerability among certain groups. They have gradually redefined the right to *be* safe as a right to *feel* safe.

In some cases, colleges have explicitly rewritten their policies and disciplinary procedures to incorporate this redefinition. As law professor David Pozen observes, Columbia's 1968 Rules of University Conduct were written to institutionalize a liberal speech regime open to a wide range of protest-related expression. But the university wrote a new, overlapping Standards and Discipline policy in 2022 that "places greater emphasis on shielding vulnerable students from discriminatory harassment" and does so

in part by using "broader definitions of harassing and discriminatory speech," Pozen explains. Columbia's anti-genocide protesters were punished under these rules.

To be sure, these are complex issues. The most reasonable defense of the hostile environment standard stems from a desire to protect the equal rights of historically marginalized groups. (Title VI specifically bars discrimination and exclusion based on "race, color, and national origin," and executive orders since then have expanded its purview to other forms of exclusion.) Are we really meant to think that African American students can feel safe or welcome on campus, or otherwise participate as equal members of the community, when white supremacists can gather on the quad and freely express their views? Aren't some symbols, like a noose or a burning cross, so potent that they constitute credible and actionable threats in themselves? And aren't certain speech acts so painful or offensive that they constitute a legally proscribed hostile environment, making it impossible to live and study on campus?

Courts have been reluctant to rule this way, but more to the point, we shouldn't want them to, because accepting these kinds of restrictions is incompatible with the right to protest. Whatever the proper domain of the hostile environment concept, it was never meant to (and shouldn't) extend to protest. It is not just that protests involve political expression. They are a particular *kind* of political expression: public expressions of hostility toward political views and often the people who hold them. If applied to speech in the context of protest, the hostile environment standard—or any norm that takes feelings of fear and insecurity as grounds for intervention—would make protest impossible.

In addition to conflating hurt with harm in order to justify repression, proponents of recent crackdowns have borrowed familiar progressive arguments for deferring to the oppressed about the definition of oppression. Objective assessment of harm, harassment, or intimidation is criticized on the grounds that "you do not tell Jews what antisemitism is," echoing

widespread claims about deferring to people of color, for example, over the meaning of racism. As one *Tablet* author put it in a 2018 article about antisemitism, "Those who experience a specific oppression get to define it" because only they understand "the complex systems that keep historically marginalized groups down." And what gets defined here is not just the meaning of some speech but what counts as actionable harm or fear.

Recent events reveal the exhaustion of this kind of argument. Over time, invocations of the hostile environment standard have created a precedent for expanding the capacity of authorities to suppress speech and protest on an arbitrary basis: namely, whether those who express feelings of vulnerability or harm happen to be powerful and influential. Consider that Muslims and Arabs, especially Palestinians, have also reported feeling unsafe on campus. Two recent exhaustive studies at Harvard even found that while only 15 percent of Jewish students reported feeling physically unsafe, some 47 percent of Muslim students felt the same, and where 61 percent of Jewish students worried about expressing their views, a whopping 92 percent of Muslim students also worried. Yet there have been no similar crackdowns on pro-Israel protesters or counter-demonstrators or whoever is causing those feelings, much less a mountain of messaging from university leaders meant to assuage their feelings of vulnerability.

Instead, hewing to subjective feelings of threat has meant granting the most elite voices the right to define oppression in ways that suit their interests. Hence groups like the Anti-Defamation League and the International Holocaust Remembrance Alliance are granted wide latitude to define antisemitism, even as broad swaths of Jews in the United States and elsewhere strenuously disagree. Following a similar logic, many institutions adopted Ibram Kendi's questionable definition of racism in the aftermath of the 2020 protests over the killing of George Floyd, in spite of deep misgivings about Kendi's views from scholars and activists of color.

At least some advocates for social justice have recognized the exhaustion of this too-easy interpretation of the hostile environment standard for quite

some time, though they have not always found allies among fellow opponents of oppression. As Henry Louis Gates put it during the culture wars of the 1990s, increased limits on speech, like speech codes, "can turn a garden-variety bigot into a First Amendment martyr." Gates's point is more than a strategic one. In the long-run practice of democratic societies, suppressing speech makes it seem like your own views and arguments are weak—so weak that you need the help of coercive authorities.

It is important to recognize that these debates over legal and political principles are playing out in a particular context: a society that has become obsessed, in deeply destructive ways, with safety and security. Over the past few decades, amid broader panics over crime pervading U.S. culture, universities have responded to concerns about the vulnerability of students as such—often voiced by over-anxious parents footing tuition bills—with greater and greater mechanisms of surveillance and control. The result is that, no matter how safe campuses already are, anxieties about student safety never abate.

Look no further than the proliferation of electronic keycards controlling access to all buildings throughout campus, the ever-expanding size and power of campus police forces, and the widespread use of security cameras and armed security guards. In these and other ways, universities have fashioned themselves as safety-guaranteeing institutions, and the university community has come to internalize that guarantee. The paternalistic orientation of the garrison university makes protests appear all the more dangerous—much more like a targeted threat or intolerable environment—rather than something uncomfortable and unpleasant but which university members can respond to on their own, without the intervention of administrators, much less police.

This politics of fear goes hand in hand with a neoliberal culture awash in the therapeutic consumerism born of ever steeper competition for access to a minimally comfortable way of life. In a society that increasingly segregates us into homogeneous communities, where resources are privately hoarded

and precious few public spaces remain, encountering sharp disagreement of the kind expressed in protest is especially likely to generate a subjective sense of unease and fright. It's in these conditions that the "desire to shrink groups down to spaces of easy agreement," in the words of Mariame Kaba and Kelly Hayes, flourishes most.

The very idea that it is dangerous to distinguish between felt harm and actionable injury is a symptom of how gutted our political imaginations have become.

The point is not that claims about feeling unsafe must be cynical efforts to silence or censure. Nor is it to contend that the feelings aren't real or that people should not have the feelings they do. Rather, the point is that claiming to feel vulnerable and unsafe cannot, in itself, decide the question of whether protest (and other forms of speech, for that matter) crosses the line. There has to be some likely and imminent threat of harm, or direct and individualized harassment and intimidation. The very idea that it is dangerous to distinguish between felt harm and administratively or legally actionable injury is a symptom of how thoroughly gutted our moral and political imaginations have become. It also demonstrates how sharply we have inverted the relationship between vulnerability and freedom—making civil liberties, like speech, dependent on first reassuring others that they will not be made to feel insecure. We have a right to be in secure possession of our freedoms, but only so long as everyone else has those same freedoms—which means others are free to say and do things that are disconcerting, unnerving, or otherwise make us feel vulnerable.

We must be uncompromising on this principle, regardless of everything else we might disagree about: the mere fact that someone feels, or even that large numbers of people feel, intimidated, uneasy, or hurt by protest does not imply any protesters crossed a line. Democracy is demanding. Encountering intense and passionate opposition to our views is inevitably discomfiting—how could it be otherwise, when our deeply held beliefs are

challenged? Refusing to make large affordances for discomfort by distinguishing it from genuine threats is flatly incompatible with a right to protest.

This principle has implications for the way universities should adjudicate claims of harm and hostility in the context of protests. At a minimum, policies that would result in the suppression of an individual's speech, or disciplinary action for an individual's behavior, should be required to document evidence that goes beyond the fact that people say they feel hurt, unwelcome, or unsafe. And even in cases where that standard is met, administrators must tailor discipline only to the specific individual rather than engage in collective punishment.

Furthermore, while universities do have a right and responsibility to preserve the ability to hold classes and go about their daily business, they should look to the way they handled protest-related disruptions in the past, when punishments for violating reasonable time, place, and manner restrictions or other campus rules were rightly modest and proportionate. That was the right way to fit together the right to protest with other important features of university life. Columbia, for example, had not expelled anyone for protest since 1968, despite numerous acts since then that were more disruptive, damaging, or harmful than anything done by the students it has recently disciplined. And even then, the expulsion of Mark Rudd, chair of the university's Students for a Democratic Society chapter at the time, was predicated on his activity being other than peaceful. Until last year, Columbia had not expelled anyone for *nonviolent* protest activity since 1936, when one Robert Burke was kicked out for protesting the university's association with Nazism.

Of course, as long as universities remain deeply undemocratic and donor-driven, we should not expect administrators to make such calls evenhandedly or without error. Under pressure from trustees and counsel

offices, they are likely to continue to act in ways that, on the whole, serve powerful interests and bottom lines rather than the public good of the university. But that isn't the only source of misrule. University leaders are incorporating wider norms that emphasize official protection of the most vulnerable as a reason for the limiting of everyone's liberty—the irony, of course, being that this has only ended up strengthening the very authorities that now make everyone's freedom even less secure.

Moreover, the bulk of us who share in campus life have power too, and the principle has implications for us as well—in particular, for the informal norms we use to interpret when boundaries are crossed as we agitate to make universities more democratic and the world more just. Most basically, we must contend with the question of how to decide, in the context of everyday life, what is tolerable and what instead requires the intervention of administrators or other authorities. Tolerating doesn't mean agreeing with, supporting, or promoting the content of any given protest, nor does it mean letting protests and other speech we find despicable go uncontested or unprotested themselves. But it does mean not inviting, engaging in, and empowering administrative suppression. It also means accepting that degree of inconvenience and heightened sense of tension.

There is no question that this can be difficult and painful. As a Jewish professor who witnessed a number of protests in person and saw even more online, I experienced the full range of reactions. I was disturbed by a number of antisemitic statements, while also hearing things that others thought were antisemitic but I did not. I recoiled at horrific celebrations of violence against Israelis and felt the same about grotesque celebrations of violence against Palestinians. I also heard people saying things that I thought defended inexcusable violence against people in Gaza, but which the speakers did not think promoted violence at all. But none of what I heard, even about violence, amounted to threats of imminent and likely harm directed at specific individuals, including myself. No doubt, tolerating repulsive speech comes easier for some than for some others. Because we live in a very

unequal society, people participate in the life of the university with very unequal resources and levels of support. But these circumstances won't be transformed through the restriction of protests, enabled by a too-expansive sense of what is intimidating or threatening. The recent crackdown on campus protests, in the very language of protecting the vulnerable, shows the failure of that approach.

My argument might sound like insensitive finger-wagging—"don't be so fragile; be more resilient, like me"—or at least too unsympathetic to the reasons people feel vulnerable in the face of public hostility. But my point is not to attack personal character. Rather, it is to emphasize what we stand to lose by accepting the terms of these intrusions on our liberty. We have to resist how our institutions, including universities, promote a democratically incoherent and politically incapacitating sense of fragility. The less we can tolerate each other's freedom, the more we become subject to the authorities to whom we end up appealing for protection, which in turn encourages us to feel increasingly vulnerable to each other.

Any norm that takes mere feelings of fear or discomfort as grounds for repression makes protest impossible.

A more permissive attitude toward protests might well create a campus culture that some find alienating. But on campuses that are supposed to be open to all members of society and that also include a significant international population, there is no better alternative than protecting *everyone's* right to protest. That is the only way, in fact, to guarantee that everyone is secure in the right way: not from feelings of fear, disgust, or alienation, but from authorities who would deny our freedom to raise our voices. Adopting this perspective means expecting of ourselves and of each other that we tolerate, or better yet counter-protest, when we can't stand what we see and hear. The main role of university leaders should be ensuring that protesters don't become violent toward each other—a role that

administrators at UCLA, for example, failed at spectacularly even while also failing to defend the right to protest.

Everyone is made more vulnerable when authorities are not committed to viewpoint-neutral enforcement of the same rights for every person. When that standard is eroded, you are safe only so long as the authorities are on your side. And the more severely collective action is repressed, the more isolated everyone is. That makes everyone weaker and therefore genuinely more vulnerable.

Nothing I have said requires that you agree with protesters who consider the war in Gaza genocide, nor with pro-life protesters who consider abortion genocide, nor with any other protest. It only requires agreement that everyone should enjoy a right to protest—not just formal permission to protest, but permission that holds up when protesters do what protesters do. It cannot be that there is a right to protest just so long as protesters avoid saying or doing anything inflammatory, uncivil, or outrageous.

That, in turn, requires a culture of toleration, even for what seems at times intolerable. This is psychologically hard, even physically taxing. But we should demand this toleration, especially by those in authority who have the power to coercively interfere. If this vision seems too permissive, it is worth stressing an inherent limit: whatever right protesters claim for themselves is a right they are also claiming for their enemies. That is the way it is if one expects institutional protection of a right. Anything less is a conditional license, subject to the whims of the powerful.

This principle has to be defended on campus, against those who believe protests are incompatible with, or merely disruptive of, the social and educational mission of the university. And it has to be defended externally, against those who want to undermine academic freedom and freedom of speech broadly. Over the last year, universities did not come close to exploring the outer boundaries of what they could permit. We must demand

they do, since nothing short of our commitment to democracy, the mission of the university, and the commons itself is at stake.

Alex Gourevitch is Associate Professor of Political Science at Brown University and author of *From Slavery to the Cooperative Commonwealth: Labor and Republican Liberty in the Nineteenth Century*.